

**IN THE COUNTY COURT AT CROYDON**

Date: 9<sup>th</sup> February 2026

**Before :**

**DJ Keating**

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**Between :**

**Koffi Emmanuel N’Guessan and  
Affouse Lea N’Guessan**

**Claimants**

**- and -**

**Donna Bewry**

**Defendant**

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Hearing date: 9<sup>th</sup> February 2026  
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**Approved Judgment**

*This judgment was handed down by circulation to the parties or their representatives by e-mail and by release to the National Archives.*

**Appearances**

Mr Francis Okeke, solicitor, of Blacks Legal appeared for the Claimant  
Mr Horaine Henry, counsel, instructed by Deton Solicitors appeared for the Defendant

**DJ Keating:**

1. This is a claim for possession of rented property, based on rent arrears, relying on Grounds 10 and 11 of Schedule 2 to the Housing Act 1988, which has been defended. The Defendant has brought a counterclaim for disrepair. The Claim was allocated to the Fast Track. The Second Claimant has not played any active role in the proceedings, but has left it to the First Claimant to deal with them. The parties agreed that any disrepair that existed prior to 9.1.2018 is now statute barred.
2. I heard oral evidence from the First Claimant and the Defendant and submissions from the parties’ advocates. There was insufficient time on 9<sup>th</sup> February to deliver an oral judgment. The First Claimant would have preferred to wait into the evening of 9<sup>th</sup> February for judgment if need be, but accepted that might have been unfair to the Court staff. The parties thus agreed that the optimal course was for a written Judgment to be handed down by email and a further hearing, if needed, be listed for 30 minutes to consider disposal and costs. The parties may be able to agree the terms

of the order to be made in the light of Judgment and, if so, can submit an order for approval which avoids the need for a further hearing. If only a minor dispute remains and the parties are content for that to be resolved without a hearing, they can submit a draft order with the alternative wording clearly indicated and brief written submissions on the point/s in dispute.

3. In civil court cases such as this one, the general rule is that if there are any disputed facts, it is for the party who asserts each fact in question to prove on the evidence that it is true. To do this they must show that it is more likely than not to be true. The burden of proof on the asserted change of rent and existence of rent arrears falls on the Claimant, and on the alleged disrepair on the Defendant.
4. After the parties had concluded their submissions, Mr Henry sent me a document which had not been within the bundle, and to which I was not referred at any stage during the trial. He called it a 'Schedule of Notice'. Mr Okeke objected to that but then went on to make submissions as to the value the Court might place on various items of disrepair. Those communications followed the conclusion of the parties' submissions. Those late communications do not really assist me in any event, save to the extent that they make a concession on behalf of the party concerned, so I have made clear where I have taken a concession into account, but otherwise had no regard to those communications.

#### *Undisputed Facts*

5. There is a good deal of common ground between the parties. They agree that on 1.8.08 the Claimants granted an assured shorthold tenancy of 15 Erica Gardens, Shirley, to the Defendant. Since 2009 that has been a statutory periodic tenancy. The Claimants are the long leaseholders of the property, which is a 2 bedroomed ex Local Authority flat in a purpose built block which was constructed in about 1950. The initial rent was £850 pcm. A deposit of £850 was paid. At some point the rent was increased to £950 pcm.
6. By 2016 the First Claimant was aware that the Defendant's daughter and granddaughter had moved in. At that point, the Defendant and her daughter had written to him to complain about repairs they thought were needed to the property. There was further correspondence in 2017 and 2018.
7. On 16.1.2019 an Environmental Health Officer (EHO) visited the property. He emailed the First Claimant that day, identifying 7 defects that needed repair. The First Claimant accepted in his oral evidence that a formal notice under section 80 of the Environmental Protection Act 1990 was issued: I have not seen the notice, so do not know whether it included all of the 7 defects identified.
8. On 1.7.19 the Defendant sent an email to the EHO confirming that most of the required work had been done. She raised 3 items: a) the toilet wasn't flushing properly. This was not a repair identified by the EHO, and the Defendant told me proudly that she had been able to fix the problem herself, working out the cause and fixing it. B) some trunking required to tidy up wires: Mr Henry accepted that this was a cosmetic issue, and c) the window handles were still broken. That was an item the EHO had identified as needing repair.

9. On 15.12.22 Mr N'Guessan served a notice pursuant to section 13 of the Housing Act 1988 on Ms Bewry, saying that the rent would increase from 1.2.23 to £1200pcm. She accepts receiving it, and that she has not made any application to a tribunal to challenge the notice. She told the First Claimant that she could not afford the increase in rent.
10. On 13.6.24 the property was inspected by Mr Ahmed, a Single Joint expert, whose report dated 17.6.24 is before me.
11. In or about August 2025 (neither witness was sure of the exact date) the freeholder replaced all the windows in the whole block.
12. The parties further agree that if the notice to increase the rent given in December 2022 is ineffective, there are no arrears of rent, and the possession claim must fail.
13. They further agree that if the notice was effective, the Defendant has continued to pay the rent at £950 pcm and there are now £9,250 arrears.

*The pleaded case for the Defendant*

14. The Court of Appeal in *Loveridge & Loveridge v Healey* [2004] EWCA Civ 173 said that  
*"In McPhilemy v Times Newspapers Ltd [1999] 3 All ER 775 Lord Woolf MR observed: Pleadings are still required to mark out the parameters of the case that is being advanced by each party. In particular they are still critical to identify the issues and the extent of the dispute between the parties." It is on the basis of the pleadings that the parties decide what evidence they will need to place before the court and what preparations are necessary before the trial. Where one party advances a case that is inconsistent with his pleadings, it often happens that the other party takes no point on this. Where the departure from the pleadings causes no prejudice, or where for some other reason it is obvious that the court, if asked, will give permission to amend the pleading, the other party may be sensible to take no pleading point. Where, however, departure from a pleading will cause prejudice, it is in the interests of justice that the other party should be entitled to insist that this is not permitted unless the pleading is appropriately amended. That then introduces, in its proper context, the issue of whether or not the party in question should be permitted to advance a case which has not hitherto been pleaded."*
15. In this case, the Defendant attempted to advance an argument through Mr Henry's skeleton argument and in her oral evidence that the deposit she had paid had not been protected properly &/or that she had not been given the prescribed information about it. There is a potential cause of action in that regard, but it had not been pleaded. The parties finalised their evidence many months ago, and it would not have been fair to have allowed a claim on that basis to be presented at trial, because that would have deprived the Claimant the opportunity to call evidence on the point. In my judgment, the Defendant should be limited to the matters that she had properly pleaded. Whilst calling her evidence, Mr Henry sought to introduce evidence that the How To Rent Booklet had not been served at the start of the tenancy – but the obligation only arose for tenancies that were granted after 1.10.2015 and the How to Rent Guide did not exist before then. The issue was only vaguely pleaded and could not be sustained: I

declined to allow that part of the Defendant's case to be advanced. For the same reasons, namely that the Claimants were entitled to know precisely the claim they needed to address, so as to be able to call evidence about each element of it, her claim for disrepair is limited to the particulars of disrepair that she actually pleaded.

16. The Defendant sought an award for personal injury arising from her disrepair, but she has not provided any expert medical evidence in support of that part of her counterclaim. Mr Henry acknowledged that in the absence of such evidence she could not prove that she had suffered personal injury.
17. The Defendant has not provided a schedule of loss in respect of items that she says were damaged, which has deprived the Claimant from commenting on such matters. I agree with Mr Okeke that the Defendant cannot show that she has suffered any loss in respect of damaged belongings.
18. The Defendant has pleaded in vague terms that notice was given to the Claimants of the items of disrepair, which means that I need to determine from the evidence whether the Defendant can show that it is more likely than not that she did so on and on which date or dates she did so.

#### *The Claimant's evidence*

19. The First Claimant began by explaining that he was struggling to pay his mortgage. As he gave me his evidence he struck me as a rather vague and approximate landlord, who was sometimes content to ask a contractor to visit to address a problem without taking the trouble to check whether the contractor had actually done so effectively. He appeared unaware of the duty of a landlord to protect a tenancy deposit. In my view, a landlord who rents out residential property is entering into a business transaction: they have gone into business as a landlord. Doing so is a serious business, with serious obligations. A failure to ensure that a rented home is safe can have fatal consequences. The Government has passed a raft of measures which impose obligations on landlords. There are high quality landlords' associations which can and do provide excellent advice to their members. Being a landlord can generate income in the form of profit – the pursuit of which is normally the reason people become landlords – but can also involve losses when expenses have to be paid, and for which a landlord must make provision. I was not wholly convinced that the First Claimant had fully grasped the breadth of obligations upon him.
20. He agreed that at one stage the Defendant had decided to undertake repairs to a shower herself and had deducted the resultant cost from her rent, which he accepted was fair.
21. His view is that he always responded to any repairs that he was told about, though he accepted that some contractors had let him down. His general view about this troubled me, because it is inconsistent with the findings of the EHO. I found it hard, in the light of the correspondence and EHO to accept the First Claimant's generalised assurances that he had always attended to repairs that had been brought to his attention.

22. He was unable to produce much in the way of invoices for all of the repairs that he said he had effected over time. He told me that he did not visit the property very often, and generally relied on his contractors to attend when he instructed them.

*The Defendant's evidence*

23. Due to some kind of computer glitch, the Defendant's witness statement contains numerous boxes where the underlying character(s) are obscured. Mr Henry was unable to help with what they might say and when giving her evidence in chief the Defendant did not attempt to fill in the gaps, even though I had identified the issue before evidence began. Sometimes the missing character can be deduced with a high degree of confidence, so that, for example, the first sentence of the third paragraph can be deduced to being "*Before I moved into 15 Erica Gardens I was living with....*" But nearly all numbers are obscured and in many cases the missing character(s) cannot be readily deduced. I cannot properly guess what the evidence might say, unless it is obvious. This matters, when for example she says "*I only had [] plug sockets*" or "*I believe that the longest we went with no heating or hot water was [] months*". She adopted the statement as true without correcting the very many omissions, and I cannot properly make a finding of fact that goes beyond the words as they appear on the page of the documents placed before me.
24. The glitches obscure the date of the statement. The index to the bundle says that it was dated 27.8.24 and no party sought to argue that date was not correct when I raised the point, so I shall treat the Defendant's written evidence as being dated 27.8.24.
25. If the Defendant considers that she has failed to establish any part of her case by reason of inadequate pleadings or problems with the evidence before me, she may need to take that up with her solicitors.
26. The Defendant struck me as a straightforward and plain speaking witness who was trying to tell me what she recalled. She readily accepted that she did not always recall precisely what happened or when.
27. She was clear that the boiler that was in place from the start of the tenancy repeatedly broke down, though she also accepted that the Claimants regularly fixed it. It finally failed completely and was then replaced within 2 weeks or so. The new boiler has worked properly since it was installed.
28. She produced some short video clips showing how a mixer tap in the kitchen sink dripped when operating and continuously flowed when turn 'off'. She could not recall when the video clips were taken.
29. She told me that the handles on the windows were defective, and that the landlord's contractors had twice replaced them – they remained defective. She agreed that one of the contractors had been to a number of different local shops trying to find the 'right' handles. She was not challenged when she told me that one of the contractors had, when screwing in the replacement (and still defective) handles had used pointed screws against her advice and the point of the screw had, through the frame of the window, hit the glass and caused it to fracture. She produced photos which clearly show the fractures emanating from the point where the handles were screwed in.

30. Where the evidence of repairs given by the First Claimant was contradicted by the Defendant, and the documents before the Court did not support one or other account, I generally preferred the evidence of the Defendant. She made concessions where appropriate and was, it seemed to me, trying to tell me what she believed to be true, whereas the First Claimant was even vaguer, and often could not recount his first hand recollection, instead relying on sometimes approximate assertions that he had or would have had a contractor visit – generally, though he could not then say what had been done because he generally had not seen or checked, instead relying on his contractor’s undocumented account.
31. However, at times the onus was on the Defendant to show that a particular item needing repair had been brought to the Claimants’ attention by a particular date. This can be achieved by phone or message, but it is for the Defendant to prove this. Her memory did not allow her to give much precision about which issues was reported when, and she has lost most of the phone messages. That means that I am largely left with the documentary evidence to determine what she can prove in terms of notification.

*The expert evidence*

32. The Court had a written single joint expert report from Shakil Ahmed, a surveyor, dated 17.6.24. Neither party had asked any Part 35 questions so the content of the report was not disputed.

*Rent Arrears*

33. The Claimant accepts that his case was that when his section 8 notice was served the arrears were £1,750, so his claim based on Ground 8 could not succeed, even if he could show that the rent had increased as he argued. He maintained his claim on Grounds 10 and 11.
34. Mr Henry argued that the Claimant was estopped from relying on the notice to increase rent, relying on *Tinkler v HMRC* [2021] UKSC 39 as authority for the proposition that estoppel could arise on the facts of this case. I note the view of Lord Burrows at paragraph 78 that

*“In my view, the five Benchdollar principles, with the Blindley Heath amendment to the first principle, comprise a correct statement of the law on estoppel by convention for contractual, as well as non-contractual, dealings”.*

Those principles are, as set out at paragraph 45,

*“(i) It is not enough that the common assumption upon which the estoppel is based is merely understood by the parties in the same way. It must be expressly shared between them. (ii) The expression of the common assumption by the party alleged to be estopped must be such that he may properly be said to have assumed some element of responsibility for it, in the sense of conveying to the other party an understanding that he expected the other party to rely upon it. (iii) The person alleging the estoppel must in fact have relied upon the common assumption, to a sufficient extent, rather than merely upon his own independent view of the matter. (iv) That reliance must have occurred in connection with some subsequent mutual dealing between the parties. (v)*

*Some detriment must thereby have been suffered by the person alleging the estoppel, or benefit thereby have been conferred upon the person alleged to be estopped, sufficient to make it unjust or unconscionable for the latter to assert the true legal (or factual) position”.*

35. In this case, the factual position is this: The First Claimant handed the Defendant a notice saying that the rent would increase. She also sent him a message saying that she could not afford to pay. He sent messages saying that she had to. It was the Defendant’s uncontroverted evidence that the First Claimant responded to one of her messages saying that she could not afford the increase with a ‘thumbs up’ emoji. I conclude that the First Claimant was capable of binding both himself and the Second Claimant – he took, in practice, all the actions of the landlord in the dealings that there were between landlord and tenant. I am not persuaded that a thumbs up emoji, on the facts of this case, can be taken as meaning that the Defendant did not have to pay the increased rent. It could simply mean that he noted her view, or that he understood it. It may be that he agreed that she could not afford to pay the new rent – but that is very different to making the next step to agreeing that the rent would not, therefore, be increased. In my judgment, as a matter of contractual construction the thumbs up emoji did not amount to an agreement to waive the rent increase. Nor, in my judgment, on the facts before me, was there an estoppel. The evidence falls far short of demonstrating that there was a common assumption at all, far less that it was ever expressly shared between them. Nor was there an expression by the First Claimant that he could be said to have assumed some responsibility for any shared understanding. I am not persuaded that the Defendant did more than just rely on her own independent view of the matter. I see no subsequent mutual dealing between the parties showing such reliance. Whilst I see detriment to the Defendant in a rent increase, I do not see that any of the 5 limbs of the *Benchdollar* test were made out.
36. Accordingly, I find as a fact that from 1.2.23 the rent for the property has been £1200pcm, and therefore at the date of trial there were arrears of rent of £9,250.
37. It follows that I conclude that the Claimants have shown that each of Grounds 10 and 11 are made out. When the proceedings began on 26.9.23 the arrears were £2000. At the date of the s8 notice they were £1,750.

#### *Disrepair*

38. The tenancy agreement contains the following express clauses that are relevant to this claim:

*“The Tenant... agrees...*

- i. To keep the interior of the Premises and the fixtures and fittings and Landlord’s installations and the doors and the glass in the windows in good tenantable repair decoration and condition (fair wear and tear... excepted)...*
- ii. To replace all broken glass in the windows...*

*...*

*The Landlord agrees....*

iii. *To be responsible for the repairs specified in Section 11 of the Landlord and Tenant Act 1985 (as amended) ... unless such repair is made necessary by the Tenant's misuse or neglect of the same ...*"

39. Section 11 of the Landlord and Tenant Act 1985 provides,

*"...there is implied a covenant by the lessor—*

*(a) to keep in repair the structure and exterior of the dwelling-house (including drains, gutters and external pipes),*

*(b) to keep in repair and proper working order the installations in the dwelling-house for the supply of water, gas and electricity and for sanitation (including basins, sinks, baths and sanitary conveniences, but not other fixtures, fittings and appliances for making use of the supply of water, gas or electricity), and*

*(c) to keep in repair and proper working order the installations in the dwelling-house for space heating and heating water."*

40. Section 4 of the Defective Premises Act 1972 provides that,

*"...the landlord owes to all persons who might reasonably be expected to be affected by defects in the state of the premises a duty to take such care as is reasonable in all the circumstances to see that they are reasonably safe from personal injury or from damage to their property caused by a relevant defect"*

41. There are therefore express and implied repair obligations which are breached if the Claimants were made aware of disrepair within the scope of those obligations and failed to rectify them within a reasonable time.

42. Turning then to the specifically pleaded items of disrepair.

a. *kitchen tap dripping*

I have seen the videos, which speak for themselves. The tap was plainly defective, and needed repair. It isn't possible to tell from the Defendant's witness statement when she gave notice of this defect to the Claimants. She says in her witness statement that the tap *"is currently [ie as at 27.8.24] dripping constantly"*. She could not recall, in her oral evidence when the video was taken but was clear that after the 2019 complaint the tap was changed, and the video shows the second tap. She says in her statement that *"the tap in the kitchen has been replaced [] times"* I cannot tell how many times she means, but the use of the words "times" suggests that she must mean more than once. In her oral evidence she did not specify an exact number.

I see from the letter dated 9.1.16 that the Defendant raised the issue that the kitchen tap *"constantly pores"*, so the Claimants had notice when they received that letter. On 18.7.17 a further letter to the Claimants said *"the kitchen tap is loose again"* which was a different fault with the tap. The necessary implication is that the first fault had been repaired, and a second fault had arisen. On 12.1.19 the Defendant sent a text to the First Claimant saying that *"the kitchen tap needs replacing because it leaks and ... has caused damage to the neighbours ceiling underneath this property"*. She goes



on to say that *“I have proof in text messages to and from the landlord regarding the cooker and kitching tap leaking this is dating back to 23.4.2018”*. The First Claimant’s evidence accepts that on 16.1.19 he received an email from the EHO highlighting that a repair was needed to *“the mixer tap in the kitchen is loose and needs to be made stable”*. The First Claimant says that most of the repairs identified by the EHO had been completed by on or around 14.6.19, which, at least in respect of the tap, is consistent with the email from the Defendant’s daughter dated 1.7.19 confirming that the tap has been changed and the leak has stopped.

The expert evidence is that when the expert saw the property on 13.6.2024 *“the tap and faucet [in the kitchen] are leaking because the tap was improperly fitted.”* Replacement was recommended.

The Defendant has to show that the Claimants were aware of the issue and did not fix it within a reasonable time. Given that in 2017 the complaint raised was that the tap was loose, rather than dripping tap raised in 2016, I conclude that it must be a different issue that had arisen in 2017. It appears from the Defendant’s message to the First Claimant on 12.1.2019 that the previous fault must have been fixed before April 2018, but that since that date she had notified him once again that the kitchen tap was leaking. I therefore conclude on the evidence before me that the Claimants were on notice about the dripping kitchen tap the Claimants were then on notice of it, and should have fixed it within a reasonable time. I consider that 28 days would have been a reasonable time to resolve the issue identified with the tap on 23.4.2018, so by 21.5.2018. On the evidence before me that was not then done until 14.6.19, some 390 days later.

By the time of the expert’s report it was leaking again. Whilst I imagine the Defendant would say that it has been leaking for some time, she has failed on the evidence before me to show that she had notified the Claimants of this prior to them receiving the expert’s report on 17.6.2024. In my view it should have been sorted within 14 days of the expert’s report: this would have been a simple task for a competent plumber, and this was the repetition of a previous problem, so it should have been fixed by 1.7.24. It was common ground that it was then fixed, but it is unclear from the parties when. I formed the clear impression from listening to the Defendant’s oral evidence on this point that this was some time after the Defendant’s witness statement, but not very recently. The onus is on her to show how long the disrepair continued. On a realistic assessment of the oral evidence, I conclude that D has shown that the tap was not repaired before the end of September 2024, but I am unable to extend her evidence beyond that date. I therefore conclude that the Defendant has shown that the Claimants also failed to repair the dripping kitchen tap, having had a reasonable opportunity to do so, between 1.7.2024 and 30.9.24, 92 days later. That is, 376 days when the rent was £31.23 per day, and a further 92 days when the rent was £39.45 per day. A loose and dripping tap may sound minor, but this was a tap that was dripping from the handle when

in use and was running a constant stream when turned off, so the word 'dripping' risks under-describing the issue. It seems to me that £1 per day at the lower rent and £1.30 per day thereafter is a fair assessment of the loss of amenity caused by the disrepair so I award  $390 \times £1 = £390$  plus  $92 \times £1.30 = £119.60$  making a total of **£509.60** for the two periods of dripping taps.

b. *leakage in the kitchen ceiling*

This was raised in the letter of 2016, but not in the letter of 2017, so I presume that it had been fixed at some stage before 18.7.17. It obviously recurred, and the Claimants knew on 6.1.2019 about this leak, because the First Claimant produces the Defendant's message to him of that date. The First Claimant's written evidence confirmed that he received that notification. He says that he sent someone to repair it, but "*it appears the workman never returned to repair*". I observe that it was the Claimants' workman and they were responsible for ensuring that he continued to return until the repair was satisfactorily completed. It was a general theme of the First Claimant's oral evidence that he would send someone to fix something, and trust them to do so, without checking that they had done as he had asked. The Defendant's witness statement discusses the issue of the leak without giving any dates. The EHO considered that this needed urgent repair on 16.1.2019 and told the Claimants so. It seems to me that a reasonable period to fix a problem identified by an EHO as urgent is 7 days, so it should have been repaired by 23.1.2019. The evidence before me shows that it was repaired by 14.6.19, but on 4.6.19 the First Claimant was still looking for a plumber, so I find on the evidence that it was not repaired until 14.6.19, some 143 days later. The rent at that time was £31.23 per day, and I consider the leak, which was onto a cooker, should be compensated at £4.00 per day, making an award of **£572.00**. The expert report in June 2024 notes the past leak, and that it had been repaired. On the evidence before me I cannot conclude that the Defendant has shown any recurrence of this leak.

c. *damaged doors and windows*

The Defendant's witness statement does not mention doors at all. She does refer to the cracked glass in the windows, and that "*when it rains the water come into the window ledge...the vents are broken so I have to tape them up because it gets so cold and leaks if it rains.*" She showed me pictures which clearly shows the cracked glass and the taped up vents. She clearly explained in her oral evidence how the wind and rain blew through. I see that the expert says that the cracks were caused by wear and tear, which would have been enough to negate the first part of the express terms of the tenancy quoted at paragraph 38 above, but would leave the Defendant with the second part of the obligation in the tenancy quoted at paragraph 38. The Defendant's oral and written evidence was that the cracks to the windows were caused by the Claimants' contractor fitting replacement (defective) window handles which caused the cracks. I accept her unchallenged account of how the cracks were caused as true. That matters because of the express terms of the tenancy, as set

out at paragraph 38, above. Whilst the Claimants might have been able to argue that the Defendant was required to replace broken glass, the fact that the breaks were caused by the Claimants' agent (their contractor) means that the repairing responsibility would have passed back to the Claimant in any event. The Defendant's witness statement does not assist me in determining when the Claimants were made aware of the problem. I see nothing about broken window panes in 2016, 2017 or 2019. The email of 1.7.19 refers to attempts made to find new window handles not having succeeded, which implies that attempts had then been made to install new handles, which was what caused the cracks to the glass. I see a text message on 7.11.21 from the First Claimant to the Defendant saying that he would come to "view the window" so he was obviously made aware by that date of some problem with a window, but I cannot tell from the text which window or which problem. So far as the cracked or broken glass is concerned, I cannot see that the Defendant has proved that the Claimants were notified of that until they received the expert's report dated 17.6.2024. That report makes it clear that the window glazing needed repair in the living room and both bedrooms. Having seen the photographs relied on by the Defendants, the windows were obviously cracked, and the glass was in at least one window hanging loose in a way that was obviously unsafe. It seems to me that it would have been reasonable to expect the Claimants to have a glazier fix the broken panes of glass in the living room, front bedroom and rear bedroom by 18.7.24. Neither party was clear about when the freeholder replaced the windows in the block, and doing the best I can on the evidence before me I conclude that this was 16.8.25, which was therefore 395 days later.

There was a separate problem with the window handles, which did not allow the windows to be effectively closed. The parties agree that the Claimants' contractors found it hard to find suitable replacements in local hardware shops or buildings suppliers. There is no evidence that the Claimants made enquiry of the freeholder, the Local Authority, which had a number of other flats which presumably needed the same window handles, to ask what it did, nor of sourcing a specialist window supplier, making internet searches or even commissioning a bespoke reconstruction of the original handles. I accept the Claimant's evidence that there was at least one and probably two unsuccessful attempts to fit new handles. The photos she showed me also showed how folded cardboard had to be inserted between the handle and frame to try to keep the handle securing the window closed, and a hole in the frame from a previous defective repair. I decline therefore to accept Mr Okeke's submission that this was a design defect. It wasn't, it was just repeatedly ineffective repairs which exacerbated rather than improved the position. The Claimants were aware of this issue from 16.1.19 when the EHO raised it. I do accept that this was not an easy repair to effect, and conclude that 4 months would have been reasonable to allow for sourcing the necessary parts effectively, and then

correctly installing them. They should therefore have been repaired by 16.5.19 but were not until 16.8.25.

That would be 1357 days when the rent was £31.23 per day and 534 days until 18.7.2024, after which there would have been an overlap in the loss of amenity arising from the broken glass, followed by a further 395 days. For those latter two periods the rent was £39.45 per day.

It seems to me that £1.00 per day would be fair for the defective window handles until the rent increased, from which it should be £1.30 per day. From 18.7.24 the loss of amenity is for the same period and overlaps considerably with it. It also seems to me that for that period, from 18.7.24 – 16.8.25, the broken handles should be treated as an exacerbation of the more significant problems arising from broken glass and leaking windows, worth an additional £0.50 per day

I therefore award  $1537 \times £1 = £1537$ , plus  $534 \times £1.30 = £694.20$ , plus  $395 \times £0.50 = £197.50$ , making a total of **£2428.70**.

*d. leaking windows when it rains*

This disrepair is proved in the same way and for the same duration as the broken glass in the windows, above. I therefore propose to assess the compensation which both the leaking windows and the broken glass within some of the windows together. At the time, the rent was £39.45 per day. I consider that £5.00 per day is a fair assessment of the loss of amenity caused by the disrepair so I award **£1975.00** for the cracked glass and leaking windows.

*e. damaged lamp holder*

I accept the Defendant's oral evidence that she took the photo of the damaged pendant lamp holder. The bottom part of the light fitting is missing. It should screw in place to hold the lampshade safely away from the heat of the lightbulb. The screw part is missing, and in consequence the lampshade has slipped off so that the plastic retaining ring is resting on the lightbulb, where it has melted. This caused a smell to the extent that at one stage the Defendants thought there was a gas leak. This was plainly disrepair, and something that would have been simple and cheap to rectify. Once again, I understand it to be the Defendant's case that this was a much longer standing issue that I can conclude on the evidence before me, and that she told the Claimants of the problem far sooner than I can see from the evidence before me, but I cannot accept that she has proved that on the evidence before me. On that evidence I accept that this was an issue caused by a contractor of the Claimant when they changed a light bulb, but this was not, on the evidence before me, notified to the Claimants until they received the experts report on 17.6.24. Again, I think that this was something that could and should have been repaired by 18.7.24. The evidence before me at trial was that it still hadn't been, though I was not asked to make an order for specific performance. There were 578 days from 18.7.24 to trial, and the daily rent was £39.45. I cannot tell from the evidence when the smell that lead to evacuation arose, but it seems to me more likely

than not that this was at some point before the expert visited on 13.6.24, so during the compensatable period this was a relatively modest item of disrepair. I consider that 50p per day would be a fair assessment of the loss of amenity, so award **£289** for this matter.

*f. faulty boiler*

I am clear on the evidence before me that the Defendants have shown that the boiler was repeatedly faulty, and they reported this to the Claimants who repaired it. I share the view of the parties that the Defendant cannot recover losses that arose before 9.1.18, because of the Limitation Act 1980. Thus, even if she can show that there was unreasonable delays in repairs in 2016 or 2017, I could not properly make any award for that.

The Claimant accepts, in Mr Okeke's post final hearing written submissions that a boiler fault was reported by the Defendant in October 2021, and that he cannot show an invoice for its repair until January 2022. I see a text from the Defendant to the First Claimant on 7.1.22 complaining about the hot tap in the bathroom not opening properly, which implies that the boiler had been repaired to produce hot water by then.

The Defendant accepted that the Claimants did arrange to replace the boiler once it finally failed for good, and did so within a reasonable time. Doing the best I can on the evidence before me, I find that the Defendant has shown that the Claimants were made aware by 14.10.21 of a boiler problem, which in my Judgment could and should have been fixed within 7 days, so by 21.10.21, but which was not in fact fixed until 6.1.22, 78 days later. That is consistent with the Defendant's oral evidence of having been left without hot water or heating over one Christmas period, even though she could not recall exactly which year that had been. The rent at the time was £31.23 per day. Mr Okeke's submission concedes that 25% of the rent would be a fair estimation of the loss. I consider that 33% would be fairer, given that this was the late Autumn and early winter, including the coldest part of most years and the festive season. I therefore award **£803.86**. I do not consider that there should be any reduction in loss of amenity awarded for any duplication of time in respect of leaking or otherwise defective windows in this period, because they would be aggravating rather than overlapping factors, if anything.

*g. damp and mould*

As mentioned above, I decline to make any award for a damaged rug, though I note the photograph of it.

The letter dated 9.1.2016 sent by the Defendant to the First Claimant referenced mould in one of the bedrooms. From the context of her witness statement there is a photograph showing mould above the curtains on the ceiling of the bedroom and another showing mould on a rug date from 2016. However, the issue is not referenced again in 2017, or 2019, or when the EHO visited in January 2019. The expert found mould on the bathroom ceiling and both bedroom ceilings on 13.6.2024. In his witness statement of 29.8.24 the

First Claimant said that he intended to resolve the issues, having made some observations about inadequate ventilation being an inherent defect.

I do not agree: the expert's advice is clear. There is no evidence that the problem was ever fully repaired, apart from the First Claimant's generalised assertion that all issues were repaired. I cannot properly conclude that there has shown that it is more likely than not that there was disrepair which was notified to the Landlord and not repaired between 9.1.18 and 17.6.24. If I was wrong to reach that conclusion, the Defendant has failed to show that the problem was of any consequence that might entitle her to an award of compensation during that period. I consider that 2 months would have been a reasonable time for the Claimants to have undertaken the modest steps recommended by the expert, so the repair should have been concluded by 17.8.24. As there is no evidence that it has been repaired, I shall award compensation up until 9.2.26, which is 541 days. There is no request for an order of specific performance. The installation of new windows in August 2025 may have alleviated the issue, but there is no evidence of that before me. The rent at the relevant time was £39.45 per day, and I consider that £2 per day, making a total of **£1082**, would be a fair assessment of the loss of amenity attributable to this.

*h. damaged plug socket*

this appears to be a reference to the plug socket in the kitchen. In her letter of 2016 the Defendant told the First Claimant that there was a socket which 'sparked' when you put a plug in or out of it. Her witness statement say that when the 'inspector' saw the property he said that more sockets were needed, and the Claimants' contractor Aston had to ring someone to ask how to wire the socket. She says that she received an electrical shock from the socket because it was incorrectly wired. Her letter of 18.7.17 says that her father had to repair the socket because it was wired up incorrectly. I cannot be satisfied from the evidence that the Defendant has shown that there was an unrepaired plug socket as at the start of 2018.

In the message to the First Claimant dated 12.1.2019 she says "*the kitchen plug sockets have stopped working so we are having to use an extension lead which is a hazard for my granddaughter*", so the Claimants were then on notice of an issue. The EHO concluded "*two defective electrical sockets in kitchen – repair urgently to reduce related hazards.*" Given the hazard and the clear view of the EHO, I consider that 7 days was a reasonable time to effect the repair. This was noted to have been done when the expert saw the property in June 2024. The Defendant's email of 1.7.19 to the EHO doesn't say that the repair is still outstanding, so it appears that the issue was repaired before then. The First Claimant's evidence is that the majority of the works required by the EHO were completed on or around 14.6.19. On the balance of probabilities I conclude that this included the sockets, so as with the ceiling leak, that is 143 days, at a time when the rent was £31.23 per day. It seems to me that £2 per

day is a fair assessment of the loss of amenity and I therefore award £286 for this.

i. *damaged cooker hob*

It was the Defendant's evidence that when the Claimant arranged for a new hob to be installed he chose an 'ex-demonstration' unit that lacked the knobs required to turn the rings on and off, so the installer sourced some other knobs. It is plain from the photographs that they were not suitable and did not fit properly. The Defendant's witness statement does not comment on when the hob was installed. The 2017 letter says that three rings did not work, which appears to be an entirely different fault, so I conclude that this was before the replacement hob was installed. As the Defendant cannot show when the first cooker hob was replaced, it follows that she cannot prove that this took an unreasonable time after the Claimants were aware of the defective ring, nor that any such loss did not resolve before 9.1.18.

On 13.1.19 the Defendant sent a photo showing that a saucepan base had been scorched. On 12.1.19 she sent a message to the First Claimant saying that the cooker was "*faulty from the day it was fitted and the cooker knobs are melting due to it being faulty*", so the Claimants were on notice of the issue from at least then. I am unable to conclude on the evidence that it before me that there was earlier notice. Even if I should not be surprised to learn that there had been, I can only make findings based on the evidence before me. The EHO found that "*the dials on the cooker are not the correct ones for this type of cooker. They are overheating when the cooker is in use causing a scalding hazard. Please replace as a matter of urgency.*" Again, I consider that 7 days is a reasonable time to fix something that an EHO has advised is urgent, and which is causing an immediate risk of harm. Moreover, the repair concerned was fairly quick and simple to do. As with the plug socket, the evidence before me is that the repair was not done until 14.6.19, some 143 days after it should have been. This, it seems to me, justifies a further £1.50 per day on top of the loss of amenity for the sockets, so a further £214.50.

j. *faulty extractor fan*

The Defendant's evidence is that the extractor fan was defective when she moved in, in 2008. In her written evidence, which she recounted in her oral evidence, she said that this was reported to the Council, who sent an Inspector who "*had the privilege of finding out how dangerous this was as it fell on him during his inspection*". She does not say when this was. The fan is mentioned in the 2016 letter, in the context of being leaked onto, but not in the 2017 letter. I see no mention of it in 2019 or 2022. The expert records in 2024 that the kitchen extractor fan had been repaired.

I cannot conclude on the evidence before me that the Defendant has shown that there was, after 9.1.2018, a defect with the extractor fan that was notified to the landlord and not repaired within a reasonable time. Accordingly, her claim in this respect fails.

43. I therefore have awarded:

- a. Tap **£509.60**
- b. Leak in ceiling **£572.00**
- c. Doors and windows **£2428.70**
- d. Leaking windows **£1975.00**
- e. Pendant Lamp **£289.00**
- f. Boiler **£803.86**
- g. Damp and Mould **£1082.00**
- h. Plug socket **£286.00**
- i. Cooker **£214.50**
- j. Fan **£nil**

44. Standing back, I am satisfied that I have taken into account the interplay between the various elements. That leaves a total award for disrepair of £8160.66.

45. The Defendant raised other matters in her evidence – for example, the lack of hot water in the bath, but as these had not been pleaded by her solicitors I cannot properly make any award for such other matters.

46. My provisional view about the consequences now follow. The parties are entitled to be heard about the orders to be made arising from those findings, so there will be a hearing to allow for this if required. However, it seems to me that the parties may be able to agree the form of order that should be made in the light of my provisional indications, by which they are not bound, without the need for a hearing. I therefore invite them jointly to revert to me by email within 7 days of this judgment being emailed to them. They may indicate that a hearing is required, that an order has been agreed, or that an order is mostly but not fully agreed but that they are content for me to resolve the remaining issues on the basis of the joint email but without a further hearing.

47. The Claimants are entitled to Judgment for £9,250.00 and the Defendant is entitled for Judgment for £8160.66. There is a claim for interest on the counterclaim but given that the Defendant has already had the interest on the unpaid rent, it seems to me that no further interest should be awarded.

48. It seems to me that the Defendant should be entitled to offset her award against the arrears, which would mean a net judgment in favour of the Claimants for £1089.34.

49. The Court has determined that the rent is now at the level asserted by the landlord, and the Defendant will need to pay it. Before I could make a decision about making a possession order, whether postponed, suspended or outright, or whether to order payment of the sum of £1089.34 by instalments without a possession order being made, I would need to understand (a) that the Defendant is able to pay the rent going forwards and (b) what her means were. Given that the balance of arrears is less than a month's rent, then provided she can show that she can pay the rent and repay the balance of arrears within a reasonable time, it is hard to see that an outright order for possession would be justified. The parties may be able to resolve these issues by agreement.



50. As to costs, each party has succeeded on their claim. It seems to me that each party should bear their own costs, with there being detailed assessment of the Defendant's legally aided costs. The exception to that is the costs of instructing the single joint expert which, it seems to me, should be wholly borne by the Claimants.

*Postscript*

51. After a short email indication on certain issues that had arisen in discussions between the parties once judgment had been given, they were able to agree a consent order which provided for a possession order suspended on terms that the arrears be repaid by modest monthly instalments and for the Claimants to undertake certain remaining repairs within a reasonable time. There was therefore no need for a further hearing.

Ends